

July 17, 2026
Dept. 9
Civil Tentative Rulings

13.	25CV2822	YOSEF ZAGHI VS. EVOLVE MANAGEMENT EXPERTS, LLC ET AL
MOTION FOR RELIEF		

This matter is before the Court on Defendants Motion for Relief from Attorney Mistake Under Code of Civil Procedure § 473(B) filed on May 27, 2026. Defendant filed a Demurrer on January 20, 2026. On May 15, 2026, the Court overruled the demurrer on the basis that Defendant failed to comply with the meet and confer requirements established by Code of Civil Procedure § 430.41(a)(3).

Defendant requests the Court: 1) grant relief under Code of Civil Procedure § 473(b) and vacate the May 15, 2026 order overruling the demurrer; 2) deem the meet and confer declaration as timely filed nunc pro tunc; and 3) set the demurrer for hearing on the merits.

Defendant's counsel, Katy Young, swears under penalty of perjury that she failed to include a declaration regarding meet and confer efforts inadvertently. The declaration was transmitted to her paralegal for filing but did not realize its absence until the Court overruled the demurrer. Ms. Young included a Declaration of Katy M. Young in Support of Defendants' Demurrer as Exhibit A. No opposition has been received.

Code of Civil Procedure § 473(B) grants the Court the discretion to relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. The application for relief must be accompanied by a copy of the proposed pleading to be filed therein.

TENTATIVE RULING #13:

ABSENT OBJECTION DEFENDANT'S REQUEST FOR RELIEF FROM ATTORNEY MISTAKE IS GRANTED. THE MAY 15, 2025 ORDER OVERRULING THE DEMURRER IS VACATED. THE MEET AND CONFER DECLARATION PROVIDED AS EXHIBIT A SHALL BE DEEMED TIMELY FILED NUNC PRO TUNC. A HEARING ON THE DEMURRER HAS BEEN SET FOR AUGUST 14, 2026 AT 8:30 A.M. IN DEPARTMENT NINE.

DEFENDANT IS ORDERED TO SERVE PLAINTIFF WITH THE UNDERLYING MOTION AND ALL SUPPORTING PLEADINGS.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.